



2026:AHC-LKO:40080-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 4696 of 2026

Gauri Prasad

.....Petitioner(s)

Versus

State Of U.P. Thru. Prin. Secy. Deptt. Of Energy
U.P. Lko. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Anjali Divedi, Sachin Shukla
Counsel for Respondent(s)	:	C.S.C., Manish Jauhari

Court No. - 3

**HON'BLE JASPREET SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.**

1. Heard learned counsel for the petitioner. Notice on behalf of the respondents No.1 and 5 has been accepted by the office of the Chief Standing Counsel. Shri Manish Jauhari, learned counsel has accepted notice on behalf of the respondents No.2 to 4.
2. By means of the instant petition, the petitioner seeks to challenge the demand notice dated 19.08.2022, relating to the electricity dues.
3. The submission of the learned counsel for the petitioner is that the proceedings were initiated by the Electricity Department without putting the petitioner to clear notice.
4. It is further urged that certain assessments have been made, in pursuance whereof, it is alleged that the petitioner is guilty of electricity theft and in this context, the sum of Rs.9,29,276/- is recoverable from the petitioner.
5. It has further been submitted that the petitioner was not served with any provisional assessment nor the final assessment was made known and the provisions of Section 126 and 135 of the Electricity Act, 2003 have not been followed and as provided in the Electricity Supply Code, 2005.
6. It has further been urged that upon receiving an alleged demand dated 18.11.2025, the petitioner had also furnished his response addressed to the

Chief Engineer of the Electricity Department concerned, a copy of which has been brought on record as Annexure No.6.

7. It is urged that till such time, the rights of the petitioner are actually determined, it will be most inequitable for the State-Authorities including the Electricity Department to recover the outstanding amount which patently is inflated and false.

8. Time was granted to the learned counsel for the respondents No.2 to 4 to seek complete instructions.

9. The record would indicate that by means of the order dated 29.05.2026, a Coordinate Bench of this Court had directed the matter to be listed on 01.06.2026 which thereafter was directed to be listed today. Even today, incomplete instructions have been provided by the Electricity Department.

10. Learned counsel for the respondents No.2 and 3 has placed before us a letter indicating that provisional assessment was made on 24.02.2023 and the petitioner was served with a copy by means of the registered cover dated 08.05.2023.

11. There is nothing on record to indicate as to why the aforesaid assessment could not be sent to the petitioner and it took three months for the Electricity Department to send the provisional assessment let alone the final assessment. There has been no information from the side of the Electricity Department regarding the status of the representation/appeal preferred by the petitioner, a copy of which has been brought on record as Annexure No.6.

12. An attempt has been made to indicate that the said appeal is not addressed to the proper authority.

13. Be that as it may, even it was not before the appropriate authority, it was for the Electricity Department to either have informed the petitioner or could have re-directed the same to be placed before the Appellate Authority, however, admittedly, the same has not been done.

14. In the given circumstances, apparently, there is a break down of

communication and the petitioner has not been served with the assessment or demand notice in accordance with law nor there has been any decision on the representation/appeal dated 17.02.2026.

15. In this view of the matter, without entering into the merits of the controversy, this Court is of the opinion that ends of justice can be met by directing the respondents-authority to consider the appeal of the petitioner, for this purpose, the petitioner is directed to prefer a fresh appeal before the competent authority within a period of ten days from today. In case, such an appeal is preferred, the same shall be considered and decided by the Appellate Authority, after affording an opportunity of hearing to the petitioner, within a further period of four weeks.

16. For a period of six weeks or till the decision on the appeal, whichever is earlier, the recovery against the petitioner shall remain stayed.

17. It is made clear that the Court has not examined the case of the petitioner on merits and the Appellate Authority shall take a decision strictly in accordance with law.

18. With the aforesaid observations, the petition stands **disposed of**.

(Indrajeet Shukla,J.) (Jaspreet Singh,J.)

June 3, 2026

Rakesh/-